

FORM A - AREA

Assessor's Sheets USGS Quad Area Letter Form Numbers in Area

MASSACHUSETTS HISTORICAL COMMISSION
MASSACHUSETTS ARCHIVES BUILDING
220 MORRISSEY BOULEVARD
BOSTON, MASSACHUSETTS 02125

Photograph



Town/City: Lexington

Place (*neighborhood or village*):

Name of Area: Pleasant Brook Area

Present Use: Residential

Construction Dates or Period: 1967-1979

Overall Condition: Good-Excellent

Major Intrusions and Alterations: Additions

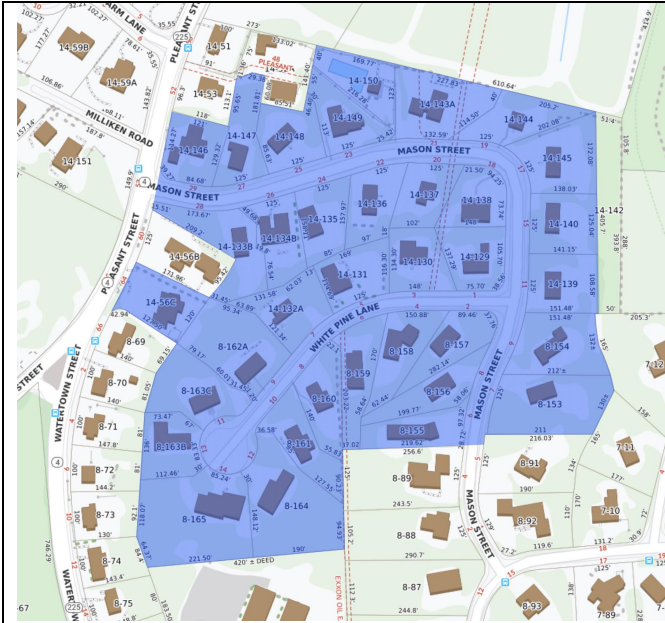
Acreage: Circa 14.64 acres

Recorded by: Matthew Daggett

Organization: Lexington Historical Commission

Date (month/year): June 2020

Locus Map



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 see continuation sheet

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

- ☐ Recommended for listing in the National Register of Historic Places.
If checked, you must attach a completed National Register Criteria Statement form.

Use as much space as necessary to complete the following entries, allowing text to flow onto additional continuation sheets.

ARCHITECTURAL DESCRIPTION

Describe architectural, structural and landscape features and evaluate in terms of other areas within the community.

Pleasant Brook is a development of thirty-four contemporary style houses constructed between 1967 and 1979 located off Pleasant Street and Peacock Farm Road in the southeastern part of Lexington, adjacent to the Route 2 corridor. The development is directly adjacent to and partially overlaps with the **Peacock Farm (Area S)** neighborhood, and includes houses on Mason Street, which is accessed off Peacock Farm Road and Pleasant Street, and White Pine Lane, which is accessed off Mason Street and terminates in a cul-de-sac, and Pleasant Street. The area consists of roughly 14.64 acres of land, subdivided into lots ranging from approximately 14,700 square feet to 40,800 square feet, with a median lot size of approximately 15,900 square feet. All but two of the houses are examples of the award-winning, split-level design known as the "Peacock Farm" house, designed by noted architect Walter S. Pierce. Each house was individually sited to reflect the contours of each lot, and most lots retain a wooded setting although more clearing has taken place in recent years. A few years after completion of the development, two "Deck House" houses were constructed on the last two unbuilt lots, which have significant topographic relief. There have been no houses demolished or any infill construction within the neighborhood, resulting in considerable cohesiveness.

As originally constructed, each of the Peacock Farm style houses in the development contained roughly 1,975 square feet of finished interior living space, across three distinct areas of the split-level design. The upper level of roughly 650 square feet consisted of two larger bedrooms, one smaller bedroom, and one or two baths. The roughly 675 square foot middle level contained the living room, dining room, kitchen, and distinctive brick fireplace. The roughly 650 square foot multi-configuration lower area contained a combination of bath, playroom, office, or additional bedrooms. With the Peacock Farm house having been in construction since 1955, the homes built in Pleasant Brook from 1967 to 1970 were able to incorporate improvements to the original design, including a roughly 625 square foot full-height poured basement under the middle level of the house, instead of the crawlspace used in the original design. Additionally, the middle level living area of most of the homes is 3 feet longer measuring 26' by 51' in plan, as opposed to a total length of 48' in the original design. The house design allowed for mirror-image versions of the plan, which enabled each house to be tailored to the siting and orientation on each lot, including the entrance to the house through a foyer on the lower level or on the middle level depending on the site characteristics. The two most common orientations of the house relative to the street are the broad side parallel with the street or the end of the house containing the upper and lower levels facing the street. The houses utilize a combination of wood and steel post-and-beam construction techniques, which allowed for large bands of windows and flexibility for interior room layouts with most internal walls non load-bearing. The structures have a shallow-pitched, asymmetric gable roof with one slope longer than the other, and broadly overhanging eaves which display five carrying wood beams that are exposed along the broadsides of the house. The homes contained roughly 40 to 50 windows of single-pane glass, arranged in multiple bands of casement and fixed window-sets, including trapezoidal clerestory windows tucked under the eaves of one side of the middle level of the house. The exteriors were originally finished in a stained vertical tongue-and-groove cedar siding; plywood window bands insets; steel window-sets with no casings or aprons; and plain painted doors.

The two Deck Houses feature a simple gable roof shape with broadly overhanging eaves synonymous with the mid-century modern era and aesthetic. Deck Houses often featured symmetrical and expansive casement windows on the gable end, and sliding glass doors on the main level that walked out to a raised deck, and sliding glass doors on the lower level often opening to a terrace. The exteriors were often finished in painted vertical tongue-and-groove cedar siding and mahogany windows. On the interior, post-and-beam construction was utilized where large beams and rafters were exposed and finished with a dark stain. To complement the beams and rafters, tongue-and-groove cedar decking was

INVENTORY FORM A CONTINUATION SHEET

MASSACHUSETTS HISTORICAL COMMISSION

220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

used as the floor structure and left exposed to create the ceiling surface, which was stained with clear finish to create a natural modern aesthetic.

Like the other developments of Peacock Farm houses in Lexington, a number of houses have been enlarged over the years. However, Pleasant Brook has a high degree of integrity and has seen fewer major modifications and large additions than most of the other Peacock Farm developments, with roughly 45% of the Peacock Farm houses in Pleasant Brook still in their original living area footprints today. Houses that have had major modifications and expansions include: **1 White Pine**, with an added garage and living area expansion; **3 White Pine**, with an added garage, screened porch, and living area expansion; **4 White Pine**, with an added garage, living area expansion, and change in roofline; **10 White Pine**, with an added carport, living area expansion, and change in roofline; **14 White Pine**, with an added garage and living area expansion; **18 Mason**, with an added garage and living area expansion; **23 Mason**, with an added garage and living area expansion; **25 Mason**, with an added garage and roof deck; **26 Mason**, with an added garage, added roof deck, living area expansion, and change in roofline; **29 Mason**, with an added garage, expanded deck, and living area expansion; and **64 Pleasant**, with an added detached garage, living area expansion, and change in roofline. Houses that have had moderate modification and expansions include: **5 White Pine**, with an attached greenhouse (since removed) and living area expansion; **6 White Pine**, with an added sunroom and living area expansion; **11 White Pine**, with an expanded deck and living area expansion; **12 White Pine** with an added garage; **13 White Pine**, with an added carport and living area expansion; **6 Mason**, with an added carport and living area expansion; **9 Mason**, with a living area expansion; **20 Mason**, with an attached covered porch; **21 Mason** with a carport; and **27 Mason**, with a living area addition. Several houses have replaced the majority of the original single pane steel casement Hope windows, including **3 & 4 White Pine** and **6, 7, 8, 15, 17, 21 and 26 Mason**. Several houses have alterations to the original 3.5" vertical cedar siding, including **3 & 4 White Pine** and **25 Mason**. **29 Mason** employs a standing-seam metal roof instead of the typical tar and gravel or rubber membrane roof. Several houses feature customizations in their original construction that are uncommon to the typical Peacock Farm house design, including two original stacked-brick fireplaces at **9 White Pine** (one since removed), a two-sided wrap around deck on an original poured concrete foundation at **11 White Pine**, a lower level constructed for a professional office environment on **11 Mason**, and the only known five-level Peacock Farm house at **29 Mason** with the original basement under the bedroom side of the house instead of the middle level. Several of the houses appear virtually unchanged and are the most intact in their original form, including **7 White Pine** and **19, 22, 24, and 28 Mason**.

HISTORICAL NARRATIVE

Explain historical development of the area. Discuss how this relates to the historical development of the community.

Modernist architecture is a type of design that focuses on the form, line, and proportion of structures; an embrace of new and innovative construction methods and materials; and a rejection of unnecessary ordination, symmetric facades, and traditional fenestration. In the 1920s and 1930s, modernist architecture was establishing itself in Germany, France, Italy, and other areas through architecture educational institutions and nascent design firms. In the 1930s and 1940s modernist architecture education was being embraced in the United States, and new architecture, planning, and design schools were being developed and staffed with European-educated scholars, some of whom were fleeing Nazi Germany. In Massachusetts, Harvard University hired figures from Germany's Bauhaus school, including Walter Gropius, Marcel Breuer, and others, in order to develop the Harvard School of Design. Similarly, the Massachusetts Institute of Technology would later transform the Department of Architecture with the addition of modernist architects such as Ralph Rapson, Carl Koch, and others. The end of World War II ushered a surge in enrollment into these and other like institutions, and ingrained modernist principles into a new generation of American architects.

Many of these architects combined their teaching and practice through the local development of modernist houses, both as individual projects and entire developments, in Boston's northwest suburbs of Concord, Belmont, Lexington, Lincoln, and Weston. One of the first modernist homes developed in Lexington was by Harvard's Hugh Stubbins in 1947, and was followed by two modernist housing developments by other Harvard architects operating as the firm The Architects Collaborative (TAC), including **Six Moon Hill (Area R)**, developed from 1947 to 1950, and **Five Fields (Area U)**, developed from 1951 to 1965. At the same time Five Fields was underway, two MIT-educated architects, W. Danforth

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA	<i>See data sheet</i>
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Compton and Walter S. Pierce, undertook **Peacock Farm (Area S)** on a tract of 42 acres in east Lexington purchased from the George Mason family. The Town approved the subdivision in 1953 and seven custom modernist homes designed by Compton and Pierce were constructed, until Compton's sudden death from polio in 1955. With Pierce left to develop the rest of Peacock Farm himself, he brought in builders Harmon White and Edward Green of Benjamin Franklin Homes in Newton to finish the development. Instead of continuing to design more custom houses, White and Green worked with Pierce to develop a standard design that would appeal to young professionals in the area. Pierce devised a single improved version of one of the "A Series" homes in the development, which became the "Peacock Farm" split-level house. With a standard design that could be easily integrated into the development's varied topology, White and Green built 48 houses of the new design from 1956 to 1958. The development was a success, and the "Peacock Farm" house received national acclaim in 1956 and 1957, including first prize in the national "Homes for Better Living" contest sponsored by the American Institute of Architects, and a First Award from House and Home magazine. The design would later be exhibited in the National Association of Home Builders' Hall of Fame in Washington. With this success, White and Green went on to develop five other neighborhoods of Peacock Farm houses in Lexington, including **Upper Turning Mill (Area AN)** from 1957 to 1961; **Rumford Road (Area AM)** in 1959; the **Glen at Countryside (Area AK)** from 1960 to 1962; **The Grove (Area AL)** from 1962 to 1964, and **Pleasant Brook** from 1967 to 1970.

The Pleasant Brook development subdivision was approved by the Town in 1966 on roughly 14.6 acres of land that was formerly the Shanahan Farm, and is directly adjacent to and partially overlaps with the **Peacock Farm (Area S)** neighborhood. Like Peacock Farm, Pleasant Brook is the only other of the White and Green neighborhoods that instituted a neighborhood association to protect the houses and neighborhood, via a real estate trust tied to the deeds of the properties. The Pleasant Brook Association trust was first established in 1967 and later amended in 1970 and 1972, and has not been amended since. Through a series of bylaws, the trust codifies architectural, landscaping, and use restrictions intended to preserve the cohesive nature of the development, and is still in place over fifty years later. Interestingly, the properties of **6, 7, 8, 9 Mason** and **2, 4, 6 White Pine** are dually-deeded into both the Peacock Farm Association and the Pleasant Brook Association, requiring approval from both associations for changes to their structures and landscape. Although these seven lots were part of the original Peacock Farm land purchase and are still part of the Peacock Farm Association, they were not incorporated into the Peacock Farm Historic District. In the National Register of Historic Places application these properties were deemed to be part a distinct second phase of development, and more of the period of the Pleasant Brook development. Unlike the **Six Moon Hill (Area R)**, **Five Fields (Area U)**, and **Peacock Farm (Area S)** developments, no large amount of common land was preserved for use by the neighborhood except for a single lot to the rear of **23 Mason**, which contains the Pleasant Brook neighborhood pool.

Another important theme of the modernist movement in the late 1940s was the concept of prefabrication, which held the promise of economies of scale through the use of indoor production lines to preassemble panels, trusses, and other components which could be joined together on site, rather than built on site from raw materials. Several American modernists demonstrated prototypes of prefabricated modern homes and started small companies to produce them, most of which did not achieve commercial success without broadening to more traditional forms of housing. In Massachusetts, architect Carl Koch worked on a number of prefabrication efforts, before achieving success with his Techbuilt house; a prefabricated and simplified version of his Conantum house, a development of one hundred modern homes built on-site in Concord, Massachusetts. The Techbuilt house was a post-and-beam design comprised of 4'x10' stressed-skin prefabricated panels raised over a poured basement foundation, and saw great success with approximately 3,000 homes built across the country from the 1950s to 1970s, including an entire development in Lexington's **Middle Ridge (Area I)**. Several associates at Techbuilt spun off their own prefabrication efforts, including John R. Bemis; who manufactured stressed-skin panels for Techbuilt and pursued his own designs with Koch under Acorn Structures Inc; and William Berkes, who established Deck Houses Inc. with fellow Techbuilt associate Robert Brownell. Over the following decades, Acorn and Deck had a friendly local rivalry with each producing prefabricated homes that had their own signature style; Acorn having a more a traditional New England style and conventional framing, and Deck with their exposed post-and-beam modern structures and signature tongue-and-groove ceiling decking. In 1995, the two companies merged under the name Deck House, Inc. and continued to manufacture both brands, but fell into receivership in 2008 after a failed name change in 2005. In 2009, the company was brought out of receivership and continues to manufacture prefabricated homes today under the Acorn Deck House Company name. It is estimated that Acorn Deck House collectively built more than 20,000 homes nationally and internationally, with a large number of homes in Massachusetts and North Carolina.

INVENTORY FORM A CONTINUATION SHEET

MASSACHUSETTS HISTORICAL COMMISSION

220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

The house at **12 White Pine** has the classic Deck House design, likely a Deck House Model 715, and the house at **14 White Pine** is also a standard Deck House model, however, the garages on both houses were added many years later.

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INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
 220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

District Data Sheet of Inventoried Properties

Map	Resource	Address	Style	Date	MHC #
8 / 153	Sherwin and Liane Lehrer House	6 Mason Street	Contemporary	1967	LEX.2041
8 / 153	Iris Wenglin House	7 Mason Street	Contemporary	1969	LEX.2042
8 / 156	Maryam Steininger House	8 Mason Street	Contemporary	1969	LEX.2043
8 / 154	House	9 Mason Street	Contemporary	1969	LEX.2044
14 / 139	Theodore & Cynthia Anderson House	11 Mason Street	Contemporary	1969	LEX.2287
14 / 140	Marilyn Weene House	15 Mason Street	Contemporary	1969	LEX.2288
14 / 145	House	17 Mason Street	Contemporary	1969	LEX.2289
14 / 138	Tien Yu & Mai Chun Tsui House	18 Mason Street	Contemporary	1967	LEX.2290
14 / 144	Stephen & Bernice Baran House	19 Mason Street	Contemporary	1969	LEX.2291
14 / 137	Israel & Sally Mirsky	20 Mason Street	Contemporary	1967	LEX.2292
14 / 143A	House	21 Mason Street	Contemporary	1970	LEX.2293
14 / 136	Pih-Kuei & Ching-I Huang House	22 Mason Street	Contemporary	1968	LEX.2294
14 / 149	Eric & Gulli Kula House	23 Mason Street	Contemporary	1970	LEX.2295
14 / 150	Pleasant Brook Pool Bath House	23R Mason Street	Contemporary	1970	LEX.2296
14 / 135	Bernard & Shirley Babior House	24 Mason Street	Contemporary	1970	LEX.2297
14 / 148	House	25 Mason Street	Contemporary	1970	LEX.2298
14 / 134B	Margaret Menzin House	26 Mason Street	Contemporary	1970	LEX.2299
14 / 147	Ralph & Muriel Mitchell House	27 Mason Street	Contemporary	1970	LEX.2300
14 / 133B	Elena Kirsch House	28 Mason Street	Contemporary	1968	LEX.2301
14 / 146	Jon & Joyce Gudeman House	29 Mason Street	Contemporary	1970	LEX.2302
14 / 129	House	1 White Pine Lane	Contemporary	1967	LEX.2303
8 / 157	House	2 White Pine Lane	Contemporary	1967	LEX.2096
14 / 130	Robert & Annet Ullian House	3 White Pine Lane	Contemporary	1967	LEX.2304
8 / 158	House	4 White Pine Lane	Contemporary	1967	LEX.2097
14 / 131	House	5 White Pine Lane	Contemporary	1967	LEX.2305

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

Map	Resource	Address	Style	Date	MHC #
8 / 159	Braden House	6 White Pine Lane	Contemporary	1967	LEX.2098
14 / 132A	Walter & Patricia Lopez House	7 White Pine Lane	Contemporary	1967	LEX.2306
8 / 160	House	8 White Pine Lane	Contemporary	1967	LEX.2307
8 / 162A	House	9 White Pine Lane	Contemporary	1967	LEX.2308
8 / 161	House	10 White Pine Lane	Contemporary	1967	LEX.2309
8 / 163C	House	11 White Pine Lane	Contemporary	1969	LEX.2310
8 / 164	Hershel & Carol Jick House	12 White Pine Lane	Contemporary	1972	LEX.2311
8 / 163B	Nannette & Wallace Feurzeig House	13 White Pine Lane	Contemporary	1968	LEX.2312
8 / 165	Warren & Shari Herman House	14 White Pine Lane	Contemporary	1979	LEX.2313
14 / 56C	Robert & Man-Ho Edwards House	64 Pleasant Street	Contemporary	1970	LEX.2314

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

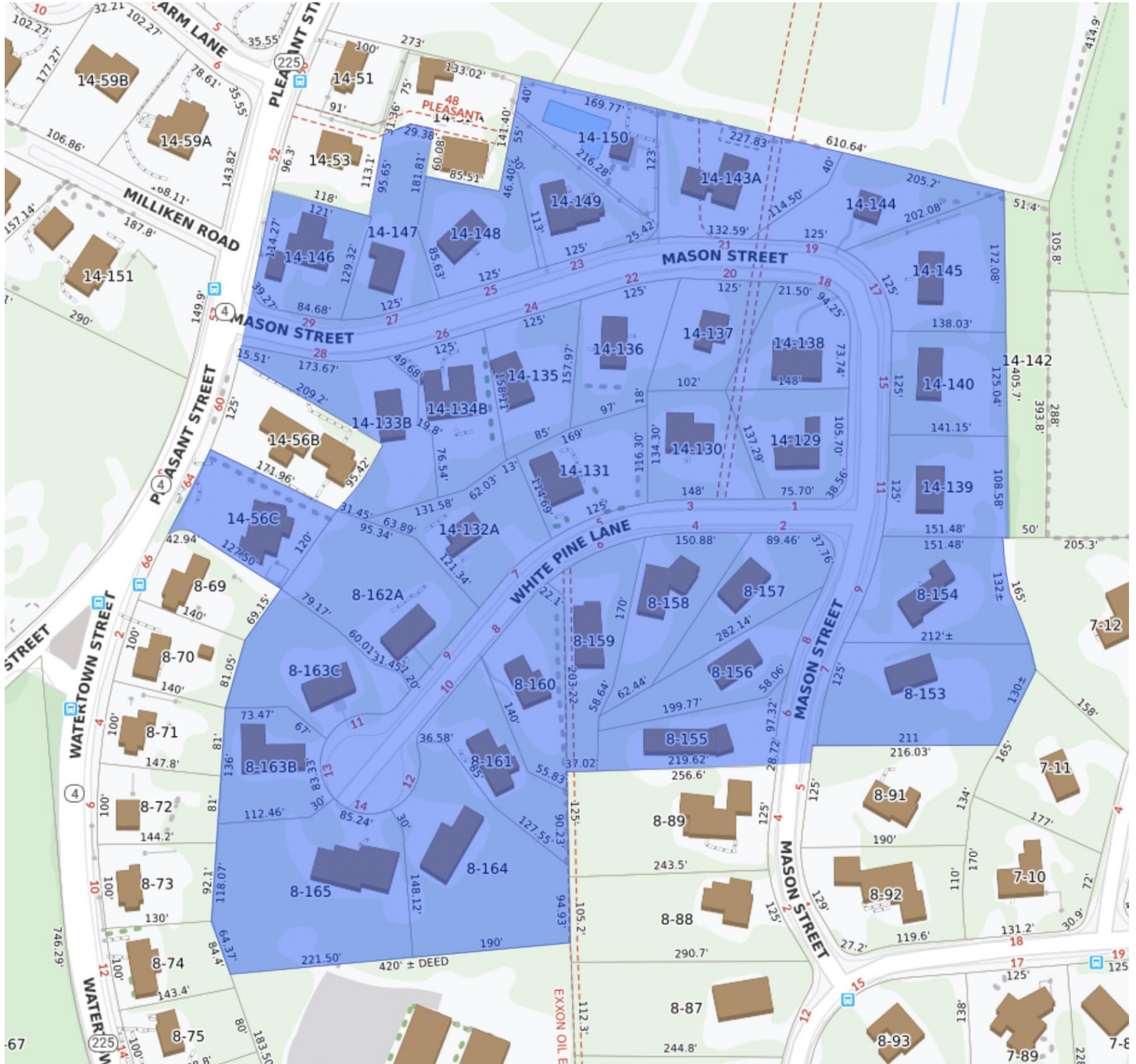
PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

[See data sheet](#)

Locus Map



INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

Supplementary photographs

Photos 1-6, 8-13, 15-19, and 21-34 taken between March-June 2020 by Matthew Daggett

Photo 7 taken in an unknown year from the Lexington Assessor Database.

Photo 14 taken in an unknown year from the Pleasant Brook Pool Corporation.

Photo 20 taken June 2020 by James Frankel



1) 6 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



2) 7 Mason Street



3) 8 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



4) 9 Mason Street



5) 11 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



6) 15 Mason Street



7) 17 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



8) 18 Mason Street



9) 19 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



10) 20 Mason Street



11) 21 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



12) 22 Mason Street



13) 23 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



14) 23R Mason Street



15) 24 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



16) 25 Mason Street



17) 26 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



18) 27 Mason Street



19) 28 Mason Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



20) 29 Mason Street



21) 1 White Pine Lane

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



22) 2 White Pine Lane



23) 3 White Pine Lane

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



24) 4 White Pine Lane



25) 5 White Pine Lane

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



26) 6 White Pine Lane



27) 7 White Pine Lane

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



28) 8 White Pine Lane



29) 9 White Pine Lane

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



30) 10 White Pine Lane



31) 11 White Pine Lane

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



32) 12 White Pine Lane



33) 13 White Pine Lane

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



34) 14 White Pine Lane



35) 64 Pleasant Street

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

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MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



Photos: Robert D. Harvey Studios

FIREPLACE WALL. *Jury's comment:* "We call particular attention to the way the fireplace is used to give privacy for entry without reducing the sense of space in the living room." (You enter the house from behind the fireplace at the right end.)

LIVING ROOM, below, as seen from the stairway at the fireplace wall.



INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
 220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

**THIS HOUSE WAS SELECTED
 AS A CITATION HOME, MASSACHUSETTS**

By
 MR. GEORGE I. GOODYEAR
 Builder
 President, N.A.H.B. (1957)
 MR. A. QUINCY JONES
 A.H.A.
 MR. HUBBARD COBB
 The American HOME Magazine
 MR. CARL NORCROSS
 House & Home Magazine
 MR. THOMAS P. COOGAN
 President, Housing Security, Inc.
 Past President, N.A.H.B.
 MR. NORMAN STRUNK
 Executive Vice President
 U.S. Savings & Loan Assn.

Here are some of the fine products used
 in the Citation Home:

HEATING SYSTEM AND BURNER: oil fired forced hot water, boiler—
 American Standard
 HEATING CONTROLS: Detroit Controls Corp.
 INSULATION: American Standard
 KITCHEN: American Standard, former legs and edging—The Furniture Co.
 HALLWAY: American Standard
 GARAGE DOOR: overhead—Crowford Door Corp.
 PLUMBING FIXTURES: American Standard
 EXTERIOR WALL SHEATHING: New Board—Celotex Corp.

open
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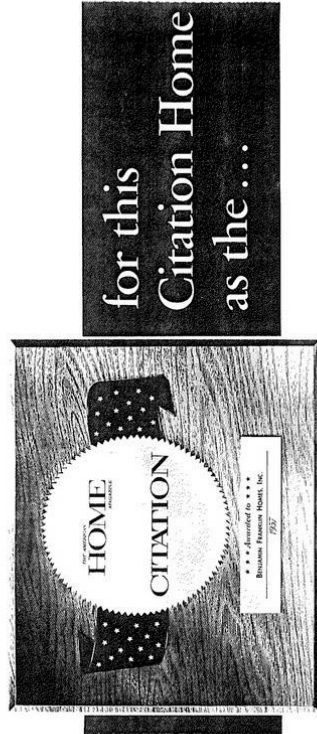
NOW — Nationally Recognized

BENJAMIN FRANKLIN HOMES, INC.

Box 53 — Newton 58, Mass.
 Phones: VO 2-1006 DE 2-4981

The American HOME CITATION SELECTION PEACOCK FARMS In Lexington

win cash prizes!
VOTE



for this
 Citation Home
 as the ...

"BEST HOUSE FOR THE MONEY"

IN Massachusetts



SEE THE SEPT. ISSUE OF
 The American HOME
 MAGAZINE FOR DETAILS
 AND ENTRY BLANK

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220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.
LEX.BA See data sheet

One of the nicest parts of this inexpensive house is the living-dining area, where the many windows make it a light and pleasant place to be. Across the front of the house is a row of windows, and high, yet decorative windows that let in plenty of light, yet maintain privacy. Along the side wall of the house a wall of windows and a door open the house to the grounds away from the street exposure. Furniture placement in the living room is easy, too, because it's a dead-end room. A brick fireplace wall preserves the privacy of the living room from the entrance door. The open dining in the living and entry area gives an unobstructed view and feeling of space.

A second area for private outdoor living is provided by the terrace which leads off the workshop room on the lower level of the house. A stone wall which intercepts the sloping terrain at this point provides definition and interest for the terrace area without confining it. The grounds of the house were landscaped with care to keep the house and the terrace in balance and to complement the fine land. The outside of the house was designed in a peaceful composition of simple geometric shapes. Adding interest to the design are a variety of materials—glass, vertical board siding and color-accented garage and entrance doors.

BUILDER: Benjamin Franklin Homes, Inc.
ARCHITECTS: Compton & Pierce
LOT: 100' x 150' x 150'
PRICE RANGE: \$21,500
LIVING AREA: 1600 sq. ft.

Floor plan details:
- Dining: 9'6" x 9'6"
- Kitchen: 12'6" x 9'6"
- Living: 15'0" x 15'6"
- Entry: 10'0" x 10'0"
- Bedroom: 12'0" x 11'0"
- Bedroom: 12'0" x 11'0"
- Bedroom: 12'0" x 11'0"
- Bedroom: 12'0" x 11'0"
- Workshop: 15'0" x 15'0"
- Garage: 10'0" x 22'6"
- Unexcavated area
- Heater, 30K

Right Price and Plan Win a Prize

When a builder offers a beautiful lot and a handsome, well-planned house for about \$21,500, you know the public will beat a path to his door. That's exactly what happened at Peacock Farms in Lexington. Though not custom-designed, these split-level houses were created with such careful attention to detail and with such knowledge of the basic needs of families that the resulting design satisfies almost any buyer's needs and still achieves the savings of mass production. Efficiently planned with 1,600 sq. ft. of living space, the house includes three bedrooms, living room, dining area, kitchen, work room, family room, one and a half baths and a separate entry area, plus 282 sq. ft. of garage. Plus average one-half acre in size.

Area Letter Form Nos.

See data sheet



INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
 220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

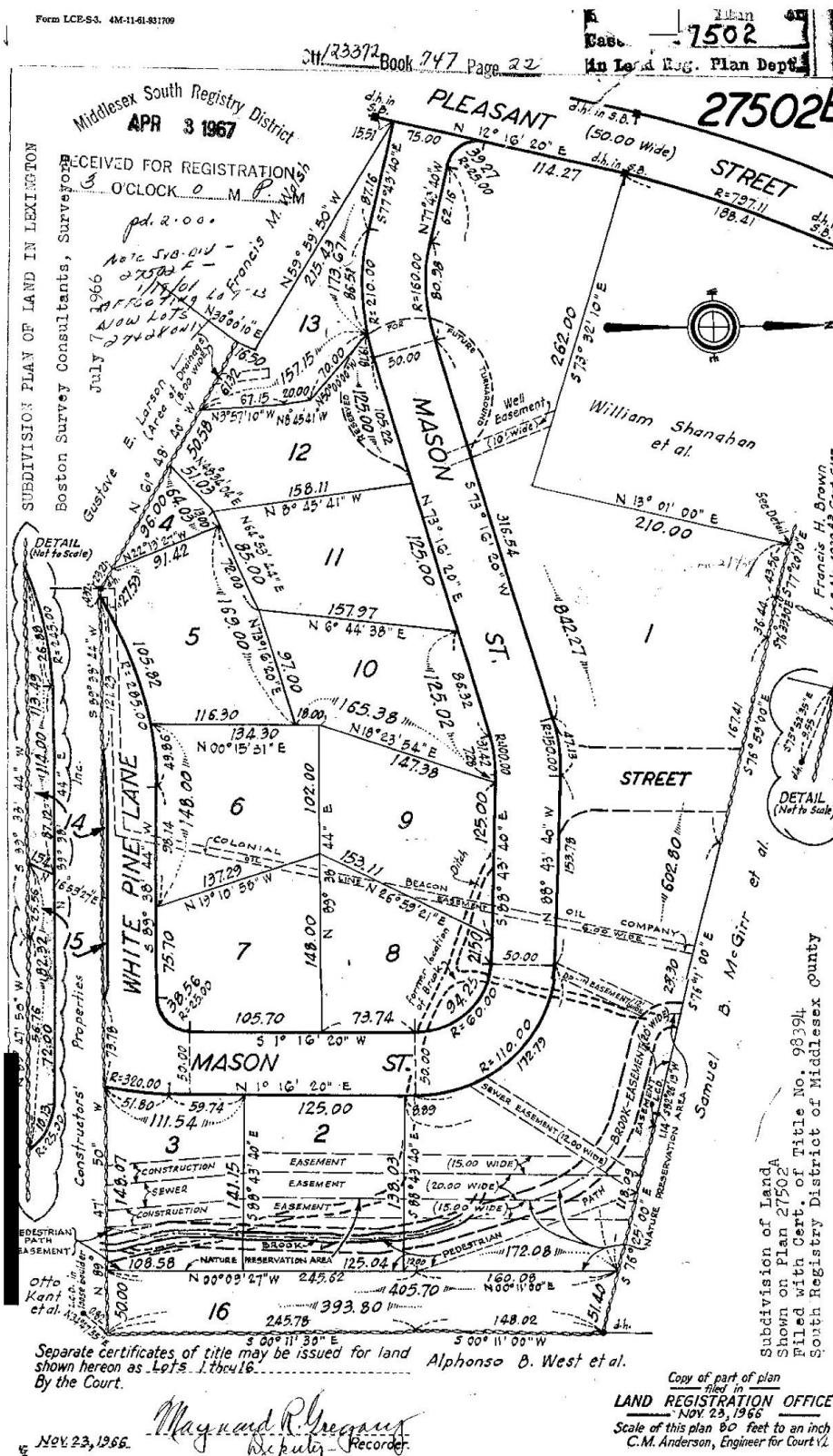
LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



INVENTORY FORM A CONTINUATION SHEET

MASSACHUSETTS HISTORICAL COMMISSION

220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

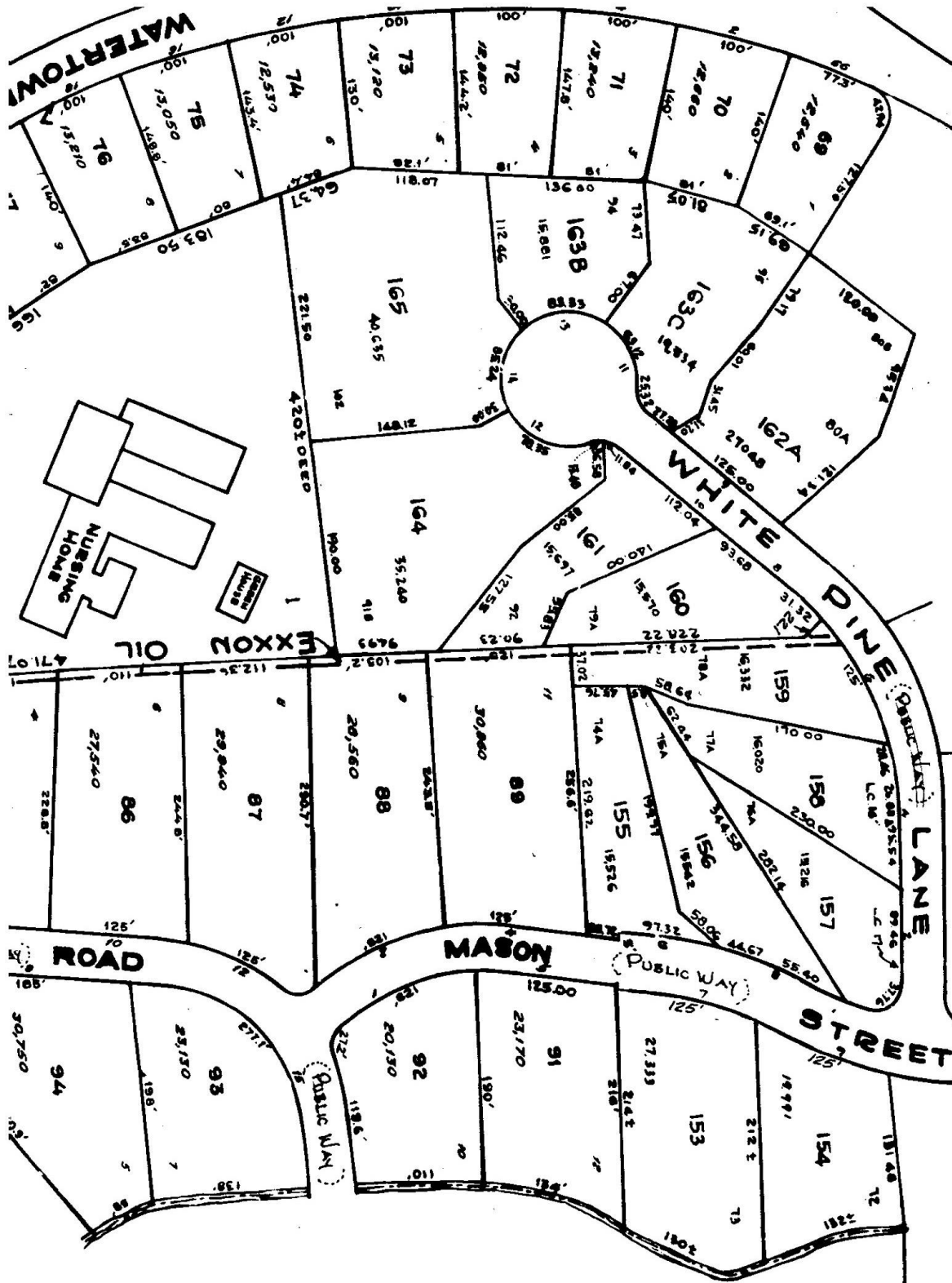
LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



INVENTORY FORM A CONTINUATION SHEET

MASSACHUSETTS HISTORICAL COMMISSION

220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

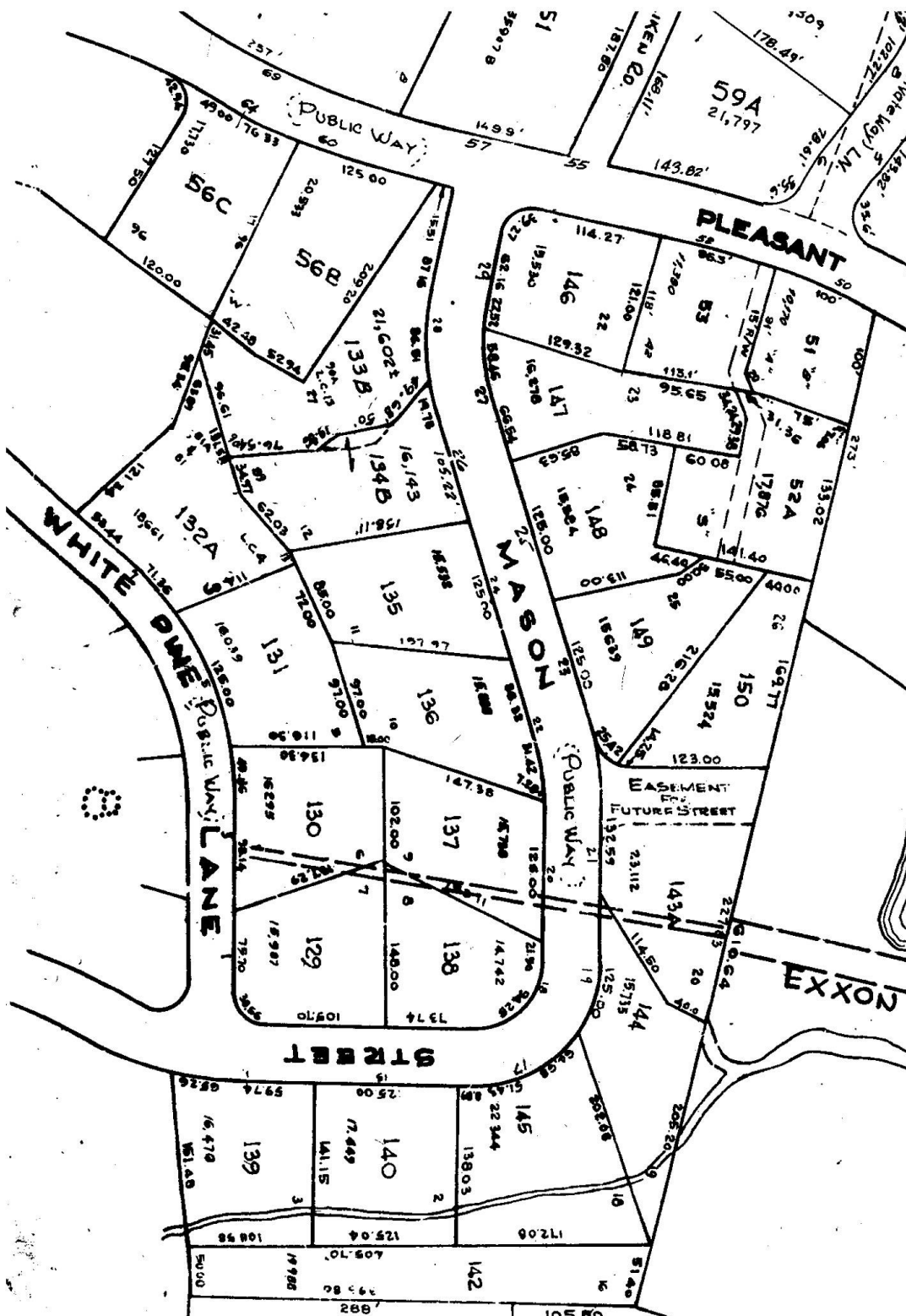
LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet



INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA

See data sheet

A

DECLARATION OF TRUST OF PLEASANT-BROOK ASSOCIATION
OF FEBRUARY 15, 1967
AS AMENDED
BY FIRST AMENDMENT OF MARCH 10, 1970
AND
BY SECOND AMENDMENT OF SEPTEMBER 6, 1972

This DECLARATION OF TRUST by BENJAMIN FRANKLIN HOMES, INC., a Massachusetts corporation, and HARMON S. B. WHITE, EDWARD GREEN and A. MORRIS KOBRICK, all of Newton, Massachusetts.

WITNESSETH THAT:

WHEREAS we have received and hold in trust the sum of \$25.00 and likewise expect to receive other moneys and properties likewise in trust and desire to set forth herein the trusts upon which said properties are and shall be held.

NOW THEREFORE we declare that we hold and shall hold said properties upon the following trusts and none other:

1. The name of this Trust shall be Pleasant-Brook Association and all business and affairs of the Trust shall be transacted in that name. Signature to any document in that name by any three of the Trustees shall be and constitute signature of all Trustees who are at that time Trustees.
2. The purpose of the Trust shall be to advance the common interest and pleasure of the beneficiaries as they are owners of and residents in homes erected upon the following land in the Town of Lexington, Massachusetts, namely: the land shown as lots numbered 69 through 91, both inclusive (and however said land may be resubdivided in the future), on a certain plan of land entitled "Peacock Farms Section VI Subdivision of Land in Lexington, Mass.", recorded in Middlesex South District Registry of Deeds, Book 11257, Page 595 (which land may be referred to hereinafter as the "Pleasant-Brook Area"); to hold such of the Pleasant-Brook Area as shall be conveyed to the Trust for the common benefit and use of the beneficiaries subject to such reasonable regulations as the Trustees shall from time to time provide; to consider and in the common interest of the beneficiaries to act upon any and all matters that may arise in connection with

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INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA	<i>See data sheet</i>
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restrictions to which any of the Pleasant-Brook Area may be subject, including enforcement, modification or release of particular restrictions, all to the end that the Pleasant-Brook Area may become and remain a pleasant and attractive place in which the beneficiaries will be happy to dwell.

3. The beneficiaries shall be those persons and corporations who from time to time shall be owners of record of land in the Pleasant-Brook Area and those persons who are members of the families of such owners, who are domiciled in the Pleasant-Brook Area, and whose names have been given in writing to the Trustees from time to time by such an owner; provided, however, that only those beneficiaries who are owners of record of such land (which term shall not include mortgagees as such) shall be entitled to a vote upon the matters hereinafter set forth upon which beneficiaries may vote. Those beneficiaries entitled to vote are hereinafter referred to as the Voting Beneficiaries. Furthermore, no voting beneficiary shall have more than one vote. Any beneficiary who shall cease to be the beneficial owner of such land (other than land owned by the Trust) or shall cease to maintain his domicile on such land shall thereupon cease to be a beneficiary hereunder and shall no longer have any interest or right in or under this Trust. The Trustees shall keep a register of beneficiaries and shall enter therein the name of each person entitled to be a beneficiary hereunder. The Trustees shall also, upon request in writing from any person entitled thereto, make notation in such register that such person is a Voting Beneficiary and shall make notation therein as to those persons who shall cease to be beneficiaries or shall cease to be Voting Beneficiaries. For all purposes of this Trust, only those persons appearing to be beneficiaries or Voting Beneficiaries upon said register shall be considered to be beneficiaries or Voting Beneficiaries.

4. The Trustees shall have full power to hold any land comprised within the Pleasant-Brook Area; to erect and maintain structures thereon for the purposes of the Trust; to make the same available for purposes of recreation to beneficiaries; to enclose portions thereof owned by the Trust and to beautify the same with gardens, lawns, ornamental waters, or the like; to make and enforce reasonable regulations governing the use of trust land by the beneficiaries; to invest and reinvest all moneys and securities belonging to the Trust in any form they may deem desirable whether or not such investment be permitted by law either as to kind or as to amount; to sell, mortgage, loan, encumber or hypothecate in their discretion upon such terms as they deem wise any personal property belonging to the Trust and any land not

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA	See data sheet
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comprised within the Pleasant-Brook Area; to hold any securities in the name of a nominee or nominees without disclosure that they are held in trust; to enter into contracts of every sort relative to the property of the Trust; to employ agents, servants and counsel and pay for services rendered under such employment; to borrow money and give notes therefore; and generally, subject to the provisions of paragraph 5 hereof, to deal with the Trust property as if they were the absolute owners thereof free of all trust. No Trustee shall be required to give security nor shall any Trustee be liable for any act or omission other than his own wilful default, dishonesty or gross negligence.

5. Any action which Pleasant-Brook Association may be permitted to take with reference to any restriction in the deed to any parcel of land in Pleasant-Brook Area, as heretofore described, may be taken only by the affirmative vote of a majority of the Trustees, subject, however, to the following condition:

If within twenty-one (21) days following any such action by the Trustees, the beneficiary of any such parcel affected by such action shall request in writing that such action be reviewed by all of the voting beneficiaries for such purpose. Such meeting shall be held in the Pleasant-Brook area or at some other place reasonably convenient thereto within thirty (30) days following receipt of such request. The call for the meeting shall be by written notice which shall contain a summary statement of the action to be reviewed and shall be mailed or delivered to each Voting Beneficiary at least seven (7) days before the date for the meeting. The action of the Trustees shall be deemed to be final and binding unless at such meeting a majority of all the Voting Beneficiaries shall have been present in person and shall have voted to disapprove or modify such action.

A certificate signed and acknowledged by any three of the Trustees specifying any such action with reference to any of the said restrictions and the manner in which it shall have been taken shall be conclusive upon all persons whomsoever as to the existence of all facts recited therein.

6. There shall be five (5) Trustees hereunder. Trustees shall be elected to two (2) year terms by a majority of the votes cast by the Voting Beneficiaries at annual general meetings of the Voting Beneficiaries. Annual general meetings

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA	<i>See data sheet</i>
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shall be called in the manner specified in Paragraph 5 of this declaration. Any trustee may resign by giving the other Trustees written notice of his resignation. Whenever any vacancy shall arise within the trustees during the interval between annual general meetings of the Voting Beneficiaries, the Trustees may, in their sole discretion (a) call a special meeting of the Voting Beneficiaries, in the manner specified in Paragraph 5 of this declaration, for the purpose of electing a trustee to serve for the unexpired term of the vacant office or (b) permit the vacancy to continue until the next annual general meeting of the Voting Beneficiaries when it shall be filled or (c) appoint a Trustee to serve until the next general meeting of the Voting Beneficiaries when the Voting Beneficiaries shall elect a Trustee to serve for the unexpired term of the office which had been vacated. Action on any matter other than under the provisions of paragraph 9 hereof by a majority of the Trustees for the time being shall constitute action by all Trustees, provided, however, that no Trustee shall be personally liable for any action taken by any other Trustee or Trustees.

7. The Trustees may from time to time levy such reasonable assessments upon the Voting Beneficiaries as shall be necessary to carry on the purposes of the Trust and the Voting Beneficiaries shall each promptly pay the same, provided, however, that all assessments shall be equal as to each Voting Beneficiary and that no Voting Beneficiary shall be required to pay assessments in excess of \$50.00 in the aggregate in any one calendar year. In the event that any Voting Beneficiary shall fail to pay an assessment within sixty days after notice thereof, he shall cease to be a Voting Beneficiary until such time as he shall pay the same and notation to that effect shall be made by the Trustees in the register.

8. The Trustees shall have no power to bind the beneficiaries personally by any action whatsoever and shall in no event be held by reason of anything herein contained to be agents or partners of the beneficiaries or of any of them.

9. Any provision of this Declaration may be altered, amended, or repealed by unanimous agreement in writing of the Trustees for the time being, and assent in writing by not less than two-thirds of the then Voting Beneficiaries. A certificate by any three Trustees that such assent of the Voting Beneficiaries has been obtained shall be conclusive upon all persons claiming under this Declaration or any amendment thereto.

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA *See data sheet*

10. No Trustee shall be liable for any act or omission of any other Trustee, or for any error in judgment. Each Trustee shall be liable only for his own wilful acts or omissions in bad faith. Without limiting the generality of the foregoing, the Trustees, and each of them, are authorized to obtain and rely upon the opinion or advice of counsel selected with reasonable care concerning any questions arising under this instrument or in any way relating to the same or relating to his or their powers and/or duties in connection with the same; and no Trustee shall be liable for any act or omission which is in accordance with the opinion or advice of such counsel.

11. A certificate signed and sworn to by any three of the Trustees setting forth any fact relative to the affairs of the Trust, including the personnel of the Trustees or beneficiaries at any time, the continued existence of the Trust, any amendment or amendments thereto, and the like, shall be conclusive upon all persons as to the existence of all facts stated therein.

12. This Trust shall terminate upon the expiration of twenty-one years from the death of the last survivor of Walter S. Pierce, Steffen Fisher Pierce and Lesley Diane Falcon, all of Lexington, and Karen Birgitte Segal of Cambridge, and the Trustees shall thereupon convert all personal property belonging to the Trust and all real property not constituting part of the Pleasant-Brook Area into money and shall distribute the same in equal shares among the the Voting Beneficiaries, and shall convey to the Town of Lexington or to any municipal corporation succeeding to any of the municipal functions presently vested in said Town which they shall select all land then owned by the Trust which constituted a part of the Pleasant-Brook Area.

IN WITNESS WHEREOF, we have hereto set our hands and seals as of the fifteenth day of February, 1967

BENJAMIN FRANKLIN HOMES, INC.

By Harmon S. B. White

Harmon S. B. White

Edward Green

A. Morris Kobrick

INVENTORY FORM A CONTINUATION SHEET

MASSACHUSETTS HISTORICAL COMMISSION

220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA**See data sheet**

Said premises are likewise conveyed subject to the restrictions hereinafter set forth, the benefit of which shall attach to so much of other land owned by the grantor as is included within the area shown as Lots 70 through 90, both inclusive, on a plan of land entitled "Peacock Farms Section VI Subdivision of Land in Lexington, Mass." recorded in Middlesex South District Registry of Deeds, Book 11257, Page 595, (of which land a portion is registered land, the registered portion being shown on Land Court Plan 27502 B as Lots 2 through 15, both inclusive, registered land Lot 2 corresponding to Lot 70 on said Plan recorded at Book 11257, Page 595, registered land Lots 6 through 11, both inclusive, corresponding to Lots 6 through 11, both inclusive, on said Plan, and registered land Lots 3, 4, 5, 12, 13, 14 and 15 forming part of Lots 71, 81, 82, 89, 90, 76 and 75 on said Plan):

1. No building shall be erected on the premises except one single-family dwelling house, one garage for not more than two automobiles and other usual outbuildings.
2. Not more than one family shall occupy the dwelling house at one time, and no family shall occupy any other building on the lot at any time as a dwelling, except that persons employed by the owners of the property for the time being may occupy living quarters in the garage. No building shall be used for any purpose except in connection with the occupancy of the dwelling house for residence purposes.
3. After erection of the initial dwelling house to be erected on the above-described premises, no building, fence, wall or other structure shall be erected upon and no major change shall be made in the landscaping of the above-described premises except with the approval in writing of the Pleasant-Brook Association (and, if any part of the granted premises constitute a portion of the land conveyed by Mason to Compton by deed dated June 12, 1952, recorded at said Deeds in Book 7918, Page 378, then the written approval of Peacock Farms Association shall also be necessary) which approvals shall not be unreasonably withheld, to the end that the entire development of which the granted premises are a part shall constitute a harmonious whole, and provided that any subsequent purchaser or mortgagee may conclusively presume that this restriction has been complied with unless a certificate shall have been recorded and/or registered with Middlesex South District Deeds by Pleasant-Brook Association (or by Peacock Farms Association, if approval is required as stated above) specifying breach thereof and, in general language, the nature and extent of such breach.
4. No animals or birds shall be kept on the premises for commercial purposes or in any manner so as to be unreasonably offensive to the neighborhood for residence purposes.

INVENTORY FORM A CONTINUATION SHEET

MASSACHUSETTS HISTORICAL COMMISSION

220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON

PLEASANT BROOK AREA

Area Letter Form Nos.

LEX.BA*See data sheet*

5. No business, trade, manufacturing or industrial use shall be made of the premises at any time, but professional activities within the dwelling, such as medical, architectural, legal services, and the like are not prohibited by this restriction, provided (1) the building shall not be structurally erected or altered for this purpose so as to appear to be other than a dwelling, and (2) no sign shall be placed on the premises except one inconspicuous professional sign attached to the dwelling. No sign other than as hereinbefore stated and one sign advertising the property for sale shall be erected or maintained on the premises.
6. The grantees, for themselves, and their heirs, executors, administrators and assigns, agree to convey to the Town of Lexington on request and without charge, the fee of or an easement in that part of the granted premises lying within any street shown on the said plan and to make no claim for damages on account of a taking thereof by said Town.
7. Any or all of the foregoing restrictions may be modified, amended or released as to all or any part of the land subject thereto or having the benefit thereof by written declaration recorded and/or registered with said Deeds executed by Pleasant-Brook Association

(and, where applicable pursuant to paragraph 3 hereof, also by Peacock Farms Association) provided, however, that no such amendment imposing any additional or greater restriction shall be applicable to any part of the said land unless consented to in writing by the then owner of the said part.

Said premises are also conveyed together with such other encumbrances of record, if any (including without limitation certain rights granted to the Town of Lexington), as are now in force and applicable to the extent that the same are now in force and applicable; and the grantor reserves for itself, its successors and assigns the right to do such banking and sloping as may be necessary or convenient for the construction of any street shown on the said plan to the satisfaction of the Town of Lexington and to enter the premises for said purposes.

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA *See data sheet*

ARCHITECTURAL RESTRICTIONS

April 8, 1970

Many of us moved here because we were attracted by the rural atmosphere and by the architectural harmony of the area. Preservation of these require the full co-operation of all residents.

As Spring approaches, many of us will be contemplating building improvements and landscape changes. In doing so, each of us should bear in mind the existing deed restrictions, their underlying purpose, and the method of obtaining approval of proposed changes.

A. Legal Basis of Restrictions

As each of you should be aware, the deed to any parcel of land in the Pleasant Brook area contains restrictions respecting the erecting of new structures, the modification of existing ones, or major changes in landscaping. Such modifications require the approval of the Pleasant Brook Association. Approval is granted or denied (in the first instance) by vote of the Trustees (see para. 5 of Declaration of Trust). According to the existing Declaration of Trust, the decisions of the Trustees must be approved by two-thirds of the Voting Beneficiaries.

It is the intent of the Trustees to interpret the restrictions as liberally as possible, consistent with preserving a natural and harmonious appearance of the community. However, it should be borne in mind that the restrictions are legally enforceable. The Trustees have standing to file a petition in court seeking a restraining order against further proceeding with the construction of an unapproved structure, or seeking an order commanding the removal of one already completed.

B. Application for Approval of Proposed Change

Two (2) copies of plans, sketches, diagrams, or such other material as the Trustees may deem necessary to adequately describe the proposed change should be submitted to the Trustees for approval. These should be submitted

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA	See data sheet
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-2-

well in advance of the commencement of any construction or signing of a construction contract. In fact, it is strongly recommended that, prior to making a formal submission, a petitioner advise the Trustees of a proposed change so that features which the Trustees consider important can be discussed informally and incorporated in the plans at their inception, thereby minimizing the chance of later changes and possible inconvenience to the petitioner.

It is the Trustees' intent to process applications promptly and, where in their opinion there is a conflict of interest, to co-operate with the petitioner in seeking a solution satisfactory to everyone. If changes are recommended, these will be discussed with the petitioner, and, when mutually agreed to, will be noted on the drawing(s). One copy of the approved drawing(s) will be signed by the Trustees and returned to the petitioner for his files. The second copy will be retained for the Association's file.

C. Changes for Which Written Approval Must be Obtained

The following list describes changes for which written approval must be obtained:

1. Renovations to houses or other existing structures which change the exterior in any way - including, for example, additions, decks, platforms, raised terraces, new or re-located door and window openings, changes in exterior finish materials, changes in roof line, etc., etc.
2. New structures of any kind (attached or freestanding) - including, for example, carports, garages, storage or tool sheds, play houses, major play equipment, tree houses, etc. Provided that the nature and location of minor structures are such as not to constitute an eyesore to the community or to a neighbor, the Trustees may grant approval for such, as temporary structures, with a specified time limit on them.
3. Fences, walls or screens of any length or height.

INVENTORY FORM A CONTINUATION SHEET
MASSACHUSETTS HISTORICAL COMMISSION
220 MORRISSEY BOULEVARD, BOSTON, MASSACHUSETTS 02125

LEXINGTON PLEASANT BROOK AREA
Area Letter Form Nos.

LEX.BA	<i>See data sheet</i>
---------------	-----------------------

-3-

4. Removal or re-location of any existing fieldstone walls.
5. Steps, surfaced paths, patios, or raised terraces of any kind.
6. Planting of hedges or other similar planting not in keeping with the present natural and informal character of the area. "Hedge", as used here, is defined as a more or less formal planting of bushes or small trees in a clearly defined line or pattern more than 10 feet long, the visual effect of which is a solid and continuous barrier.
7. Removal of any living trees 4" in diameter or larger. Extensive removal of other living growth where such growth constitutes a feature of the community landscape or where the removal of such growth would noticeably affect the landscape and appearance of a neighboring lot.
8. Major changes in the grading of any lot, including the bringing in of fill (but not topsoil), or the removal or the re-location of existing earth.
9. New or relocated driveways.
10. Signs of any kind.
11. Any other structural or landscaping change which materially affects the appearance of the community.

3